

25STCV17658 25STCV17658

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-14

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Case Number: 25STCV17658 Hearing Date: July 14, 2026 Dept: 509

Cherise Blakey, et al. v. Joseph Ruazol

MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

MOVING PARTY: Plaintiffs Cherise Blakey; John Yungandreas; Thomas Morrison, a minor by and through their guardian ad litem, Cherise Blakey; and David Navasartian

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiffs Cherise Blakey; John Yungandreas; Thomas Morrison, a minor by and through their guardian ad litem, Cherise Blakey; and David Navasartian (Plaintiffs) filed the instant action against defendant Joseph Ruazol for disputes arising from a residential lease. The first amended complaint alleges seventeen causes of action.

Plaintiff now moves for leave to file a second amended complaint (SAC). No opposition was filed.

TENTATIVE RULING:

Plaintiff's Motion for Leave to File a Second Amended Complaint is GRANTED.

The standalone Second Amended Complaint must be filed within 10-days and timely served on all parties as required by law.

Moving party is ordered to give notice.

DISCUSSION:

Motion for Leave to File Second Amended Complaint

I. Legal Standard

If a plaintiff wishes to amend a complaint after the answer has been filed or after the demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the complaint “of course,” permission of the court must be obtained before the amendment will be allowed. (Code Civ. Pro. §§ 473, subd. (a)(1), 576.)

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Motions for leave to amend the pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. . . .” (Code Civ. Pro. § 473, subd. (a)(1); see Code Civ. Pro. § 576.) Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Absent prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes omitted].)

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Although denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expenses, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.))

II. Analysis

Here, Plaintiffs seek leave to change the identity of the defendant from Joseph Razul to “JOSEPH RUAZOL, individually and trustee of the Edilberto G. Ruazol Revocable Trust.” (Bonyadi Decl. ¶6.)

With an absent of prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th at p. 761 [internal quotes omitted].) Courts recognize a “policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits.” (*Bd. of Trustees v. Superior Ct.* (2007) 149 Cal.App.4th 1154, 1163.) No defendant has opposed this motion and therefore, has not demonstrated any prejudice by allowing this amendment. Consistent with these settled policies, Plaintiffs’ motion for leave to file the second amended complaint is proper.

This Court takes no position at this time on the accuracy of the amendment proposed by the Plaintiff. Rather, the “better course of action” is to permit the amendment, “and then let the parties test its legal sufficiency in other appropriate proceedings.” (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th at p. 760.)

Accordingly, Plaintiff’s Motion for Leave to File a Second Amended Complaint is GRANTED.

IT IS SO ORDERED.

Dated: July 14, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Defendant was served on June 17, 2026, via e-mail. (See Mot. at p. 75/78.)

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.